

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/23/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

**OPPOSITION TO PLAINTIFF'S
MOTION FOR LEAVE TO FILE
SECOND AMENDED COMPLAINT**

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Hearing Date: April 30, 2026

Time: 9:00 a.m.

Dept: 302

Judge: Joseph M. Quinn

Defendants.

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 Defendant CSAA INSURANCE EXCHANGE (“Defendant”) hereby submits the following
2 in opposition to the Plaintiff’s motion for leave to file a second amended complaint.

3 **I. INTRODUCTION**

4 Plaintiff’s current effort to amend the pleadings, despite Defendant’s pending Anti-SLAPP
5 motion is completely precluded under California law—given Defendant’s pending Anti-SLAPP
6 motion. Plaintiff cites no authority to support the proposition that he can file his Motion for Leave
7 to Amend—as no such authority exists to support his motion.

8 Further, Plaintiff has not provided sufficient notice of this motion, by setting it for hearing
9 a mere 8 days after filing—and weeks before Defendant’s properly filed and served Anti-SLAPP
10 motion is to be heard.

11 Plaintiff’s procedurally defective and legally unsupportable motion practice is undeniably
12 designed to evade Defendant’s Anti-SLAPP motion. Further, Plaintiff’s conduct in this, and other
13 regards, is illustrative of his consistent gamesmanship and complete lack of respect for this Court,
14 his opposing parties, and the entire judicial process.

15 The Court must deny this bald-faced effort to improperly sidestep Defendant’s properly
16 filed, served, and noticed Anti-SLAPP motion to Plaintiff’s First Amended Complaint—which is
17 pending a properly noticed hearing on May 12, 2026, in this Court.

18 **II. FACTUAL BACKGROUND**

19 On April 9, 2026, Defendant caused to be filed with the Court and served on Plaintiff by
20 Certified Mail and Email a copy of Defendant’s Special Motion to Strike per Code Civ. Proc. §
21 425.16 (“Anti-SLAPP motion”). (*Declaration of Tyler J. O’Connell in support of Defendant’s*
22 *Opposition* [hereinafter “*O’Connell Decl.*”] ¶ 2, **Ex. A.**)

23 Defendant’s Anti-SLAPP motion is based on the nature of Plaintiff’s allegations as
24 contained in the original Complaint and in the First Amended Complaint (“FAC”). Plaintiff’s
25 allegations squarely target Defendant’s litigation conduct all from Plaintiff’s underlying personal
26 injury jury trial—which Plaintiff lost by defense verdict in April 2025. (*O’Connell Decl.* ¶ 3.) Prior
27 to filing the Anti-SLAPP motion, Defendant’s counsel informed Plaintiff in writing, and on a phone
28 call, of Defendant’s intention of filing an Anti-SLAPP motion should he not withdraw the FAC, in

1 its entirety—as the entirety of the purported legal theories in Plaintiff’s FAC focus inextricably on
2 Defendant’s protected litigation conduct. (*O’Connell Decl.* ¶ 4.)

3 Plaintiff refused to withdraw the FAC, in writing and on two meet and confer phone calls.
4 And Defendant’s Anti-SLAPP motion was properly filed on April 9, 2026. (*O’Connell Decl.* ¶ 5.)

5 Subsequently, on April 16, 2026, seven (7) days after after Defendant’s Anti-SLAPP motion
6 had been filed, Plaintiff sent an email to Defendant’s counsel purporting to serve his Motion for
7 Leave to file a Second Amended Complaint. (*O’Connell Decl.* ¶ 6, **Ex. B.**) Plaintiff’s Motion was
8 not filed on an ex parte basis and did not contain any of the required ex parte declarations.
9 (*O’Connell Decl.* ¶ 7.) Moreover, Plaintiff’s instant Motion has been set for hearing only fourteen
10 (14) days from the date of electronic service. This is defective. (*O’Connell Decl.* ¶ 8.)

11 Also on April 16, 2026, despite being untimely, Plaintiff went ahead and filed the instant
12 motion, setting it for hearing on April 30, 2026—only 14 days away. (*O’Connell Decl.* ¶ 9.)

13 On April 17, 2026 and April 20, 2026, Plaintiff sent two different emails to Defendant’s
14 counsel stating Plaintiff would seek “impending professional consequences,” including “a negative
15 mark on [Defendant’s counsel’s] Bar license” should counsel not voluntarily withdraw or “vacate
16 these motions”—referring to Defendant’s pending Anti-SLAPP motion and Demurrer in this
17 litigation. (*O’Connell Decl.* ¶ 10, **Ex. D.**)

18 Then, on April 22, 2026, Plaintiff sent another email to Defendant’s counsel’s office
19 purporting to serve a Motion for Leave to file a **Third** Amended Complaint. (*O’Connell Decl.* ¶ 11,
20 **Ex. E.**) Also on April 22, 2026, Plaintiff sent yet another email to Defendant’s counsel’s office
21 purporting to serve i) “a Motion to Deem Admitted, Compel, and for Sanctions”; ii) and a bevy of
22 additional written discovery requests, despite Defendant’s Anti-SLAPP motion pending.
23 (*O’Connell Decl.* ¶ 12, **Ex. F.**)

24 Apparently, Plaintiff has also filed an ex parte application for an order shortening time to
25 hear his Motion for leave to file a Second Amended Complaint; however, that ex parte application
26 has neither been served, nor noticed, upon my office. Hence, this Declaration and Opposition will
27 not address that ex parte filing. (*O’Connell Decl.* ¶ 13.)

28 Ultimately, in addition to the undeniable service of process and notice issues, Plaintiff’s

1 Motion for Leave to File a Second Amended Complaint is barred as a matter of law, given
2 Defendant's pending Anti-SLAPP motion.

3 **III. LEGAL ISSUES BARRING THIS MOTION**

4 The defects in Plaintiff's current motion—and underlying First Amended Complaint—are
5 myriad. Suffice it to say, in the limited time available for Defendant to prepare this Opposition (in
6 light of Plaintiff's lack of proper notice of this motion), Defendant will concisely list those issues.
7 First, Plaintiff provided insufficient notice of this Motion. Second, Plaintiff's insufficient notice of
8 this motion substantially prejudices Defendant. Third, Plaintiff cannot plead around Defendant's
9 pending Anti-SLAPP motion by yet again amending the pleadings.

10 **A. Plaintiff Provided Insufficient Notice of Motion and Defective Service**

11 Under Code Civ. Proc. § 1005(a) "Written notice shall be given, as prescribed in
12 subdivisions (b) and (c), for the following motions:

13 (12) Motion ... for Leave to Amend pursuant to Section 585.5.

14 (13) Any other proceeding under this code in which notice is required, and no other
15 time or method is prescribed by law or by court or judge.

16 (b) Unless otherwise ordered or specifically provided by law, all moving and
17 supporting papers shall be served and filed at least 16 court days before the hearing.

18 ...and if the notice is served by facsimile transmission, express mail, or another
19 method of delivery providing for overnight delivery, the required 16-day period of
20 notice before the hearing shall be increased by two calendar days.

21 Here, Plaintiff served the instant Motion on April 16, 2026, via email upon Defendant's
22 counsel. (*O'Connell Decl.* ¶ 6, **Ex. B.**) Then, Plaintiff set this motion for hearing on April 30, 2026.
23 This service constituted only 14 days' notice until the hearing (from the April 16 service).

24 Plaintiff's 14 days' notice of this Motion is insufficient, as service by email requires a
25 minimum of 16 days' notice—plus two (2) days for electronic service—for a total of 18 days' notice
26 required. Plaintiff's 14-day notice of this Motion is procedurally defective and subject to denial on
27 this basis alone.¹

28 ¹ Apparently, Plaintiff has filed an ex parte request for an order shortening time to hear this motion; however, that ex
parte request was not served or noticed upon Defendant's counsel. Therefore, this ex parte request should be denied.

1 **B. Plaintiff's Current Motion Substantially Prejudices Defendant**

2 Plaintiff's defective service, gamesmanship, and unsupportable effort to amend the
3 pleadings substantially prejudices Defendant. First, Defendant's Anti-SLAPP motion is still
4 pending. Plaintiff's current effort, which he has patently admitted is to sidestep Defendant's properly
5 filed, served, and noticed Anti-SLAPP motion, is prejudicial. Defendant's have already incurred the
6 burden and expense of preparing a lengthy and detailed Anti-SLAPP motion to Plaintiff's
7 unsupportable allegations. Were this Court to grant Plaintiff's instant Motion, the costs of additional
8 motion practice would be incurred upon Defendant, and the burden of further filings and review
9 imposed upon the Court.

10 Second, Plaintiff has provided insufficient notice of this Motion, creating a rush to the
11 Courthouse for Defendant to prepare and file an Opposition to a motion that has absolutely zero
12 merit.

13 **C. Plaintiff Cannot Amend the Pleadings Given Defendant's Pending Anti-SLAPP**
14 **Motion**

15 California law is abundantly clear: once a Defendant files an Anti-SLAPP motion, the
16 pleadings cannot be amended until that Anti-SLAPP motion is heard and ruled upon.

17 "There is a history of case law setting forth the rule that a party cannot amend around a
18 SLAPP motion. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 775; citing *Law Offices*
19 *of Andrew L. Ellis v. Yang* (2009) 178 Cal.App.4th 869, 880, 100 Cal.Rptr.3d 771; *Sylmar Air*
20 *Conditioning v. Pueblo Contracting Services, supra*, 122 Cal.App.4th at pp. 1054–1055, 18
21 Cal.Rptr.3d 882; *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073–1074, 112
22 Cal.Rptr.2d 397.) "We are not inclined to create instability in this rule by permitting a plaintiff to
23 amend its pleading." (*City of Colton, supra*, 206 Cal.App.4th at 775.)

24 "A plaintiff cannot avoid [an anti-]SLAPP motion by amending the complaint." (*Jackson v.*
25 *Mayweather* (2017) 10 Cal.App.5th 1240, 1263; citing *Hansen v. California Department of*
26 *Corrections & Rehabilitation* (2008) 171 Cal.App.4th 1537, 1547; accord, *Contreras v.*
27 *Dowling* (2016) 4 Cal.App.5th 774, 791, ["[a] plaintiff ... may not seek to subvert or avoid a ruling
28 on an anti-SLAPP motion by amending the challenged complaint ... in response to the

1 motion”]; *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th
2 1049, 1055;; see *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073, [§ 425.16 makes
3 no provision for amending the complaint; “we reject the notion that such a right should be
4 implied”].) *Jackson v. Mayweather, supra*, 10 Cal.App.5th at 1264.

5 There is no legal rationale provided in the moving papers—nor, truly, under California law—
6 to justify Plaintiff’s current effort to amend the pleadings, in light of Defendant’s pending Anti-
7 SLAPP motion.

8 **IV. CONCLUSION**

9 Defendant respectfully requests the Court deny Plaintiff’s Motion for Leave to file a Second
10 Amended Complaint, in light of Defendant’s pending Anti-SLAPP motion.

11
12
13 Dated: April 23, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

14
15 By _____
16 Chad S. Tapp
17 Tyle J. O’Connell
18 Attorneys for Defendant
19 CSAA INSURANCE EXCHANGE
20
21
22
23
24
25
26
27
28

1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 **San Francisco County Superior Court Case No.: CGC-25-631802**

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 23, 2026, I served the following document: **OPPOSITION TO PLAINTIFF'S**
7 **MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT.**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Shingle Springs, California on April 23, 2026.

20
21
22
23
24 **Monique Schubert**
25 Monique Schubert